

Customary Land Tenure, Inheritance Rules, and Smallholder Farmers in Malawi*

TSUTOMU TAKANE

(Tokyo University of Agriculture)

This article examines the interrelationship between smallholder strategies to obtain land and customary land tenure and inheritance rules in contemporary Malawi. Based on village surveys in diverse regions of Malawi, it highlights how most land transactions followed customary rules but also explores significant deviations. The reasons for transfers deviating from customary norms included unique personal relationships between landholders and heirs, wives returning to patrilineal villages, and intensifying land scarcity. Yet the effects of land scarcity were contradictory, as it not only induced individuals to obtain land by any means possible, but also encouraged the obstruction of flexible land transfers to prevent lineage land from being alienated to non-kin, suggesting a conflict between individual and lineage strategies. The article also examines vernacular land markets, which are limited in scale and provide different opportunities for poor and wealthy farmers. By highlighting both the adaptive and negotiable nature of customary land systems and a trend towards enhanced inequality, this study seeks to capture the complex reality of Malawian agrarian dynamics.

Introduction

This article seeks to clarify the interrelationship between people's strategies to obtain land rights in rural Malawi, and indigenous land tenure systems and customary inheritance rules. In practice, these rules can be applied both strictly and flexibly, and the complexity of actual land transactions belies any simplified dichotomy between matrilineal/patrilineal systems, or an evolutionary perspective.

The workings of customary law (including customary land tenure and inheritance rules) in Africa attracted much interest from early British colonial officials and anthropologists, partly because working through tradition provided an ideological underpinning for colonial rule. Studies identified the fundamental principles of customary rule (as anthropologists understood them to be), leading, in some cases, to codification and the publication of single, authoritative versions of customary law. Such stylised views have been subject to criticism, such as that of Edmund Leach, who outlined the poor fit with reality, and emphasised the importance of beginning any analysis of custom from empirical observation.¹

Comaroff and Roberts have added to this criticism, arguing that customary rules are a loosely constructed repertoire rather than an internally consistent code, and should not be reduced to

* I would like to thank the two anonymous reviewers of this journal for their valuable suggestions and comments. I am also grateful to the Centre for Social Research, University of Malawi, for providing an excellent research environment during my stay in Malawi. Financial support for this study was provided by the Institute of Developing Economies.

1 E.R. Leach, *Rethinking Anthropology* (London, Athlone Press, 1961). This critique has also been made in ethnographic terms by Englund in the study of contemporary Malawi. See H. Englund, *From War to Peace on the Mozambique-Malawi Borderland* (Edinburgh, Edinburgh University Press, 2002).

formalistic models. The rules governing property relations may be construed in a variety of culturally recognised ways, and may be revised repeatedly to express contemporary interests or relations.² As Moore wrote of the Chagga, 'customary' practices changed freely in response to social and economic transformations without any explicit revision of the stated customary law. The new norms and patterns of behaviour that emerged under new conditions were simply incorporated as part of a system of practice: the Chagga used 'their traditions as one of a number of resources out of which to construct new arrangements to suit their ever-changing situations'.³

From a different perspective, Chanock argued that customary law was a product of the transformation of African institutions under colonialism.⁴ It played a role in legitimising power at the local level, as British colonial policies sought to support particular rural power structures in the name of tradition. In this process, Africans were not simply passive recipients; rather, they actively used customary law to deal with subjugation and to translate their values and interests into power over others. Codifying customary law, Chanock maintained, transformed previously fluid and flexible custom to fixed rules and led to a freezing of rural status, producing more rigid social stratification and undermining negotiation. Other scholars, however, have argued that customary rules remained subject to debate, even perpetual conflict, and thus remained fluid in practice.⁵

These theoretical perspectives are reflected in the existing literature on contemporary land tenure in Malawi.⁶ This study furthers this body of work in three main ways. First, it contributes to debates over whether the contemporary dynamics of land rights are producing adaptive, negotiable customary systems of landholding or whether they are creating inequality and social differentiation. In an influential study, Sara Berry interprets African rural land as being subject to multiple interests and to a dynamic of litigation and struggle that fosters investment in social relations, while also maintaining fluidity and negotiability.⁷ Peters, on the other hand, draws attention to instances of intensifying conflict over land.⁸ While acknowledging the adaptive and negotiable nature of the customary tenure, Peters emphasises competition, exclusion, inequality and social differentiation associated with the proliferation of

2 J.L. Comaroff and S. Roberts, *Rules and Processes: The Cultural Logic of Dispute in an African Context* (Chicago, The University of Chicago Press, 1981).

3 S.F. Moore, *Social Facts and Fabrications: 'Customary' Law on Kilimanjaro, 1880–1980* (Cambridge, Cambridge University Press, 1986), p. 319.

4 M. Chanock, *Law, Custom and Social Order: The Colonial Experience in Malawi and Zambia* (Cambridge, Cambridge University Press, 1985). See also T. Ranger, 'The Invention of Tradition in Colonial Africa', in E. Hobsbawm and T. Ranger (eds), *The Invention of Tradition* (Cambridge, Cambridge University Press, 1983), pp. 211–262.

5 S. Berry, *No Condition is Permanent: The Social Dynamics of Agrarian Change in Sub-Saharan Africa* (Wisconsin, The University of Wisconsin Press, 1993); B.L. Shadle, '"Changing Traditions to Meet Current Altering Conditions": Customary Law, African Courts and the Rejection of Codification in Kenya, 1930–60', *Journal of African History*, 40 (1999), pp. 411–431.

6 R.M. Mkandawire, 'Customary Land, the State and Agrarian Change in Malawi: The Case of the Chewa Peasantry in the Lilongwe Rural Development Project', *Journal of Contemporary African Studies*, 3, 1/2 (1984), pp. 109–128; P.E. Peters 'Against the Odds: Matriliney, Land and Gender in the Shire Highlands of Malawi', *Critique of Anthropology*, 17, 2 (1997), pp. 7–26; P.E. Peters, 'Bewitching Land: The Role of Land Disputes in Converting Kin to Strangers and in Class Formation in Malawi', *Journal of Southern African Studies*, 28, 1 (2002), pp. 155–178; P.E. Peters, 'Whose Security? Deepening Social Conflict Over "Customary" Land in the Shadow of Land Tenure Reform in Malawi', *Journal of Modern African Studies*, 45, 3 (2007), pp. 447–472; P. Kishindo, 'Land Tenure: the Case of the Salima District, Central Malawi', *Malawi Journal of Social Science*, 16 (1997), pp. 57–67; P. Kishindo, 'Dynamics of Land Tenure: A Village Case Study', in T. Takane (ed.), *Current Issues of Rural Development in Malawi* (Chiba, Institute of Developing Economics, 2006), pp. 1–22, available at http://www.ide.go.jp/English/Publish/Ars/pdf/12_cap1.pdf, retrieved on 7 September 2007.

7 Berry, *No Condition is Permanent*.

8 P.E. Peters, 'Inequality and Social Conflict Over Land in Africa', *Journal of Agrarian Change*, 4, 3 (2004), pp. 269–314. Also see Peters, 'Bewitching Land'.

conflicts, which belie 'the assumption that socially embedded systems of landholding and land use guarantee access, let alone equal access'.⁹

Second, the article aims to further an understanding of the role of market-based transactions as a means of securing land rights. Chimhowu and Woodhouse recently argued that the commoditisation of access to land within the framework of customary tenure, which they call 'vernacular land markets', has been evident for more than a century and is now both more common and increasing.¹⁰ The principal factors driving vernacular land markets have been the increasing commercialisation of both agricultural produce and labour mobility, which have generated cash flows and increased land value. Chimhowu and Woodhouse suggest that the commoditisation of land inevitably works to the disadvantage of those with lower purchasing power, while those with the most influence over land under customary tenure (such as village heads and lineage heads) are best placed to gain from land sales and rents.¹¹ Their argument echoes Peters' emphasis on the inequality and social differentiation associated with the contemporary dynamics of land rights.

Thirdly, this article broadens the existing debate in the Malawian literature by introducing a comparative perspective. Many studies of customary land tenure in Malawi have focused on particular geographical areas, particularly on the matrilineal societies of central and southern Malawi. Relatively little is known about farmers' rights to land under customary tenure in patrilineal societies in northern Malawi. This study fills these gaps by providing detailed comparative studies of six villages in matrilineal and patrilineal societies in various parts of rural Malawi.

The article proceeds by briefly presenting the characteristics of the six case-study villages before outlining indigenous land tenure systems and inheritance rules. It then turns to discuss the complex interrelationship of land scarcity, customary institutions, vernacular land markets, and the struggles of villagers to obtain land.

Study Locations

The fieldwork for this study was undertaken in 2004 and 2005 in the six villages shown in Figure 1. In selecting these study sites, care was taken to represent diverse regions, a range of different predominant ethnic groups and varying degrees of population pressure. The first study location, Kachamba, is a matrilineal Chewa village under the Traditional Authority (TA) Mavwere in the Mchinji District of the Central Region. There were 31 households in Kachamba at the time of the survey,¹² with a population of 109, and the ratio of female-headed households (FHH) was 29 per cent (nine households). The main crops cultivated were maize, groundnuts, and tobacco. Maize is the main staple food in Malawi and by far the most important crop, not only in Kachamba but in all the villages studied, and every household included in the survey cultivated it. Owing to acute land scarcity, fields were not allowed to lie fallow but were used every year.

9 Peters, 'Inequality and Social Conflict', p. 305.

10 A. Chimhowu and P. Woodhouse, 'Customary vs Private Property Rights? Dynamics and Trajectories of Vernacular Land Markets in Sub-Saharan Africa', *Journal of Agrarian Change*, 6, 3 (2006), pp. 346–371.

11 Chimhowu and Woodhouse, 'Customary vs Private Property Rights', pp. 359–60.

12 A household is defined here as a unit of co-residence and agricultural production. In most cases, it is also a unit of consumption. However, members of poor households that exhausted their maize stocks in the hungry season ate at relatives' households. Vaughan provides useful discussion on the problem of the unit of analysis in the context of rural Malawi. See M. Vaughan, 'Which Family?: Problems in the Reconstruction of the History of the Family as an Economic and Cultural Unit', *Journal of African History*, 24, 2 (1983), pp. 275–83; M. Vaughan, *The Story of an African Famine: Gender and Famine in Twentieth-Century Malawi* (Cambridge, Cambridge University Press, 1987).

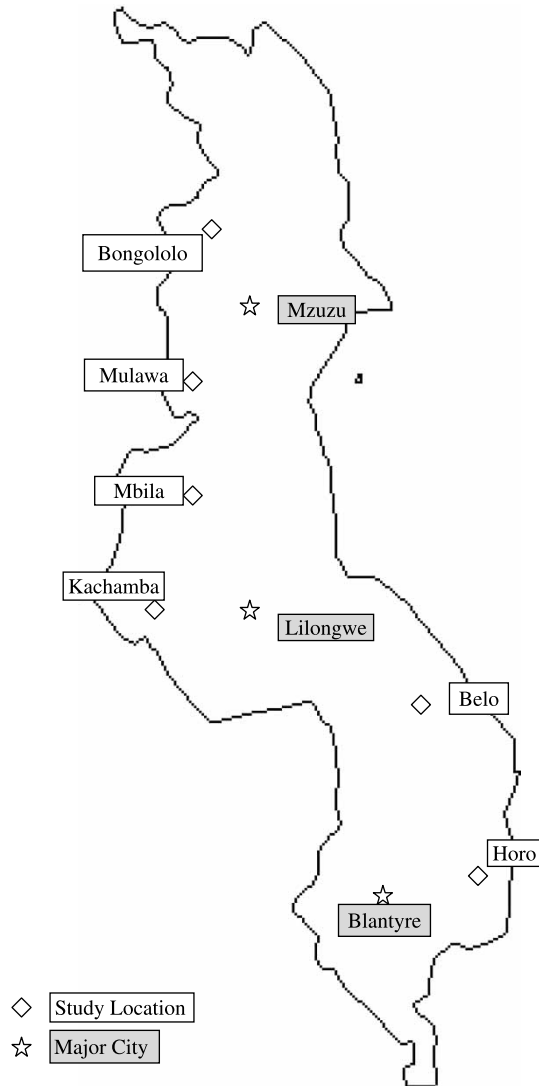


Figure 1. Study locations.

The second village studied, Belo, is located in the TA Mponda in the Mangochi District of the Southern Region. At the time of the survey, there were 115 households, a population of 513, and the ratio of FHH was 18 per cent (21 households). Among the main crops were maize, tobacco, chillies, groundnuts, and cassava. The community was made up of indigenous Yao residents and migrants from various parts of southern Malawi. The latter mostly settled in the area after the 1980s, opening new farms on previously uncultivated land. Upon their arrival in Belo, migrants had been given pieces of land for farming by the village headman, many of which had yet to be opened. The relative abundance of land in Belo was in sharp contrast to the situation in Kachamba.

The third study location, Horo, is a matrilineal Lomwe village in the TA Mkhumba in the Phalombe District of the Southern Region, located about 20 km from Mozambique. The ratio of FHH in Horo was 46 per cent (36 households), which was the highest among the study villages.

Maize was cultivated by all farmers, but many also intercropped with minor crops such as pigeon peas, sorghum, millet, and sunflowers. Due to the scarcity of land, plots were not allowed to lie fallow.

The fourth village, Bongololo, is in the TA Chikulamayembe in the Rumphi District of the Northern Region, and almost all inhabitants were patrilineal Tumbuka. There were 69 households, with a population of 360 and the ratio of FHH was 26 per cent (18 households). The crops produced in Bongololo were maize, tobacco, groundnuts, cassava, soybeans, sweet potato, and millet.

The fifth study location, Mulawa, is a patrilineal Ngoni village under the TA Mzukuzuku in the Mzimba District of the Northern Region. Mulawa lies 20 km away from the major road linking Lilongwe to the northern regional capital of Mzuzu. The number of households in Mulawa was 29, the population was 151, and the ratio of FHH was 34 per cent (10 households).

The sixth study location is Mbila, 5 km north of the district capital, Kasungu, in the Central Region. The village had 76 households, 14 of which were FHH, and a population of 348. The majority of residents were matrilineal Chewa, but patrilineal Ngoni and Tumbuka also lived in the village. Villagers cultivated maize, groundnuts, soybeans, cassava, sweet potatoes and tobacco.

Fieldwork in Kachamba and Belo was undertaken between August and October 2004. In the remaining four study villages, data were collected between May and September 2005. The sampling procedures were as follows. During the first week of the survey in each study site, a village census was conducted, such that the sampling frame consisted of all village households. Next, households were divided into two categories: those that grew tobacco during the previous season and those that did not. Equal numbers of households were then randomly selected from each category. This sampling procedure was adopted because one aim of the broader study was to assess the impact of tobacco production on rural livelihoods.¹³ The final sample size for all of the study villages totalled 186 households.

Interviews in the six villages were conducted with the assistance of a village resident and a graduate research assistant who was fluent in Chichewa (a major language spoken in Kachamba, Belo, Horo and Mbila) and Chitumbuka (spoken in Bongololo and Mulawa). This writer attended, recorded and reviewed all interviews. A structured questionnaire was used during the interviews, and free discussion was encouraged to elaborate important issues such as family history, land disputes and livelihood strategies adopted by household members. In addition, farms operated by sample households were measured using global positioning systems to obtain data on plot size. Key informant interviews were also conducted to obtain information such as village history, kin relations and land tenure systems.

Customary Land Tenure and Inheritance Rules in Malawi

Land in Malawi can be classified into three categories: public, private and customary land.¹⁴ Public land is owned or held in trust by the government or Traditional Authorities and includes national parks, forest reserves and conservation areas. Private land is held or owned under freehold title, leasehold title, or Certificate of Claim granted by early colonial

13 T. Takane, 'Gambling with Liberalization: Smallholder Livelihoods in Contemporary Rural Malawi', IDE Discussion Paper No. 117 (Chiba, Institute of Developing Economies, 2007), available at <<http://www.ide.go.jp/English/Publish/Dp/Abstract/117.html>> , retrieved on 7 September 2007.

14 P. Kishindo, 'Customary Land Tenure and the New Land Policy in Malawi', *Journal of Contemporary African Studies*, 22, 2 (2004), pp. 213–25.

governors to European settlers. Most large-scale estates fall under this third category of private land. Customary land is held under the customary law of each ethnic group and makes up 69 per cent of total land in Malawi.¹⁵ As most of the land cultivated by smallholder farmers falls under this category, the following analysis focuses exclusively on customary land.

Local chiefs exercise trusteeship over customary land on behalf of their people, but entrust land management to village heads, who make decisions regarding land allocation to community members. Every indigenous inhabitant, by virtue of membership in a community, is entitled to access to a piece of land, while non-indigenous inhabitants such as migrants may also be allocated a piece of land, provided that vacant land is available and the recipients respect community tradition and customs. Once acquired, land rights can be handed over to heirs on a quasi-permanent basis. When a landholder and his or her kin members all die or move out of the village, however, land must be returned to the community for reallocation to other community members. As land is not owned as such but is vested in the community as a whole, the permanent alienation of land (such as through sale) is usually prohibited.¹⁶ In practice, however, such land sales do take place.

The transfer of land rights within a lineage through gift and inheritance¹⁷ follows matrilineal or patrilineal rules, depending on ethnicity. Matrilineal kinship organisation predominates among the major ethnic groups of central and southern Malawi, such as the Chewa, Yao and Lomwe, and within these groups, land is transferred along matrilineal lines. Patrilineal rules, on the other hand, are practised among the major ethnic groups in northern Malawi, particularly among the Tumbuka and Ngoni, and land rights, which belong to men, are mostly transferred from fathers to sons. In both matrilineal and patrilineal societies, land is gifted to an heir when the heir gets married, gives birth to a baby, or becomes mature enough to form an independent household. Inheritance of land also follows matrilineal or patrilineal rule, but the decision of who inherits the deceased's land is made by a lineage head based on consultation with lineage members. In both gifting and inheritance, preference is given to those who reside in their natal village over those who reside elsewhere.

Matrilineal and patrilineal social organisation is closely linked to marriage and residence rules. In matrilineal societies, uxorial residence in which a husband moves to the wife's village and cultivates her land is the norm. A husband has no decision-making power regarding the transfer of his wife's land rights. Upon divorce or his wife's death, a husband is expected to return to his natal village, and loses the land-use rights in his wife's village. Children remain in their mother's village because they belong to the mother's matrilineal kin.¹⁸ Rules of residence in patrilineal societies, on the other hand, are virilocal, and a wife lives in her husband's village after marriage. A legitimate marriage in patrilineal societies involves a payment of bridewealth (*lobola*) from a husband to the wife's kin. A divorced woman must return to her village, leaving her children in her husband's village and returning the bridewealth to the husband's kin.¹⁹ A widow may remain in her late husband's village and continue cultivating his land together with their children, provided that the bridewealth was paid upon marriage. If no bridewealth was paid (which has become increasingly common in recent years), a divorced woman or a widow may take her children back to her natal village.

15 Government of Malawi, *Malawi National Land Policy* (Lilongwe, Ministry of Lands and Housing, 2001).

16 Government of Malawi, *Final Report of the Presidential Commission of Inquiry on Land Policy Reform, Volume 1, Main Report* (Lilongwe, 1999), p. 63.

17 In this article, *gifting* refers to cases where a person obtains land from a relative while the relative is still alive. *Inheritance* refers to cases where someone obtains land after the death of the original landholder.

18 P. Kishindo, 'Differential Security of Tenure on Malawi's Customary Land: Implications for Investment', *Development Southern Africa*, 12, 2 (1995), pp. 167–74; P. Peters, 'Agricultural Commercialization, Rural Economy and Household Livelihoods, 1990–1997', (Harvard Institute for International Development, 1999); Peters, 'Bewitching Land'; Mkandawire, 'Customary Land'.

19 M. Read, *The Ngoni of Nyasaland* (London, Oxford University Press, 1956).

The return of a man or woman to his/her village after divorce or a spouse's death may result in a land dispute among kin members because the allocation of land to the returnee is likely to be difficult due to the severe scarcity of land in many parts of rural Malawi.²⁰

Actual Land Transactions in the Study Villages

The indigenous land tenure systems and matrilineal and patrilineal inheritance rules described above are better regarded as 'ideal constructs'.²¹ It should not be supposed that, either in the past or present, all land transactions follow these idealised models of customary land tenure. As the following section shows, the actual land transactions observed in the study villages were more complex and flexible. There were also many exceptions to the inheritance rules, such as land gifts from father to son in matrilineal societies. Nevertheless, we should not jump to the conclusion of an evolutionary, unidirectional increase in patriliney.²² The more important issue here is to understand in what circumstances such exceptions occur, and why inheritance rules are applied flexibly in some cases and rigidly in others. By examining actual land transactions in both matrilineal and patrilineal societies in the six study villages, the following section seeks to clarify the complex interplay of indigenous institutions and villagers' struggles for land.

Land Rights in Matrilineal Societies

In the villages in the study that follow matrilineal rules of inheritance – Kachamba and Horo – the majority of residents obtained land rights through matrilineal lines (see Table 1). It is noteworthy, however, that in a good number of cases villagers obtained land from sources other than matrilineal lines, indicating a flexible application of the inheritance rules. However, in Horo the study also highlighted very rigid applications of matrilineal inheritance rules. Behind this apparently paradoxical coexistence of both flexible and rigid application of inheritance rules lies the growing problem of land scarcity in the two villages.

Kachamba. The Kachamba area was first inhabited in 1953 by a group of Chewa matrilineal kin who migrated from a village in the adjacent TA Mlonyeni. The group was led by a senior brother who had obtained vacant land in the present Kachamba area from a local chief. The senior brother divided the land and distributed it among his kin.²³ Most residents of Kachamba are descendants of the original settlers and obtained their land as a gift or by inheritance (Figure 2). In the past, when land was abundant, villagers sought permission from the village headman and opened farms in uncultivated areas. At the time of the survey, however, no extra land was available, and acquisition through gifting and inheritance was the most important means of obtaining access to land.

20 Peters, 'Bewitching Land'; Kishindo, 'Land Tenure'

21 K.M. Phiri, 'Some Changes in the Matrilineal Family System Among the Chewa of Malawi Since the Nineteenth Century', *Journal of African History*, 24, 2 (1983), p. 258. Vaughan also points out the lack of fit between socio-economic realities and people's public expression of their culture in rural Malawi. See Vaughan, 'Which Family?'

22 C. Brantley, 'Through Ngoni Eyes: Margaret Read's Matrilineal Interpretations from Nyasaland', *Critique of Anthropology*, 17, 2 (1997), pp. 147–69; J.I. Guyer, 'Household and Community in African Studies', *African Studies Review*, 26, 2/3 (1981), pp. 87–137.

23 Some of the original settlers, including the senior brother who later became village headman, were still alive at the time of the survey.

	Daughter of Maternal Grand- mother's Sister	1	0	1	0	0	0	0	0	0	0	0	0	0	0	0	0	0	1	0	1
	Matrilineal Total	1	2	3	0	0	0	0	2	2	0	1	1	0	0	0	0	0	1	5	6
	Patrilineal Father	0	0	0	0	0	0	2	1	3	2	2	4	0	0	0	1	0	1	5	3
	Others Husband	0	0	0	0	2	2	0	0	0	0	3	3	0	3	3	0	2	2	0	10
	Inheritance Total	1	2	3	0	2	2	2	3	5	2	6	8	0	3	3	1	2	3	6	18
Matrilineal Inheritance and Gifting Total		11	11	22	4	1	5	14	20	34	0	3	3	2	0	2	4	2	6	35	37
Patrilineal Inheritance and Gifting Total		8	2	10	3	4	7	3	6	9	17	6	23	21	2	23	11	3	14	63	23
Other Inheritance and Gifting Total		0	0	0	0	4	4	0	1	1	1	3	4	0	3	3	1	3	4	2	14
Other Methods	Allocation by Village Head	0	0	0	14	1	18	0	0	0	2	0	2	0	0	0	6	0	6	22	4
	Purchase	3	0	3	0	0	0	1	0	1	0	0	0	0	0	0	2	0	2	6	0
Other Methods Total		3	0	3	14	4	18	1	0	1	2	0	2	0	0	0	8	0	8	28	4
Grand Total		22	13	35	21	13	34	18	27	45	20	12	32	23	5	28	24	8	32	128	78
Rented/Borrowed Rented Land		5	1	6	0	0	0	1	2	3	7	0	7	0	0	0	2	0	2	14	2
	Borrowed Land (Free of Charge)	4	0	4	5	1	6	1	0	1	7	2	9	1	1	2	2	0	2	20	4
Rented/Borrowed Total		9	1	10	5	1	6	2	2	4	14	2	16	1	1	2	4	0	4	34	6

Note 1: Figures in Kachamba do not include those for original settlers.

Note 2: Total number of cases exceeds that of the sampled households because a household may have obtained land from multiple sources through different methods.

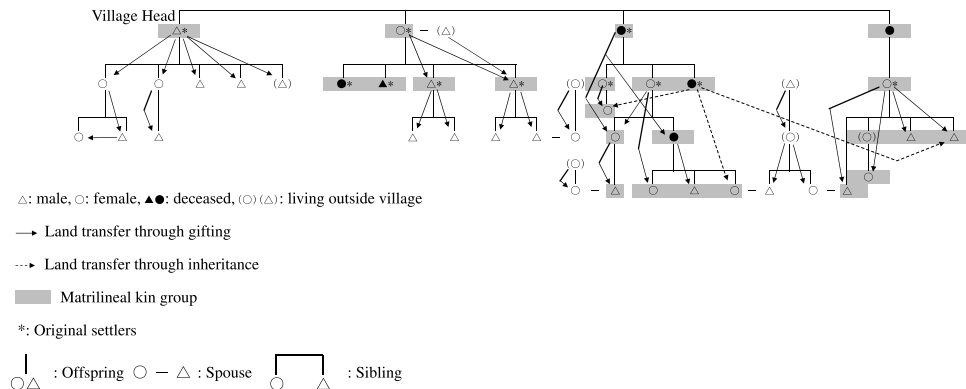


Figure 2. Directions of land transfers in Kachamba. Note: The village headman obtained land from a local chief and distributed it to original settlers.

In Kachamba, 30 households (97 per cent) cultivated their own land. The average household landholding size was 0.88 hectares, and the average farm size (including rented land) was 1.10 hectares. As Table 2 shows, 26 per cent of households operated very small farms of less than 0.5 hectares. Only one female-headed household did not hold land, and instead rented it. Among the landholding households, there were 15 cases in which the land belonged to male household members, and 11 in which the land belonged to female members. In the remaining four cases, both male and female household members (husband and wife) had separate plots of land.

The Chewa people follow matrilineal rules of descent and inheritance in which land is passed down through matriline, most commonly from female landholders to female heirs.²⁴ In Kachamba, however, both men and women obtained their land matrilineally *and* patrilineally. As shown in Table 1 and Figure 2, in the majority of cases (22 out of 32 total cases) land rights were obtained from matrilineal kin members, although land transfers from mother to daughter were few (only five cases). On the other hand, there were ten cases in which sons and daughters received land from fathers, contrary to matrilineal inheritance rules.²⁵ The rule of matrilineal inheritance in Kachamba, therefore, was not rigid, but flexible.

A similar flexibility was observed in the rules of residency after marriage. Among matrilineal societies in Malawi, marriages are usually uxorilocal. In Kachamba, however, cases of virilocal marriage were more common (16 cases) than uxorilocal marriage (five cases). Generally, those who had obtained land before marriage or who could be given land upon marriage tended to remain in Kachamba after marriage.

The flexible practice of inheritance and marriage rules in Kachamba may be an adaptive strategy employed by villagers in response to the increasing scarcity of land. As acquisition of land became more difficult, villagers sought land from any source, whether matrilineally or patrilineally. Once they obtained land, men continued to stay in the village after marriage (contrary to the rule of uxorilocal marriage) to secure their land rights. While staying in

24 R.M. Mkandawire, 'The Land Question and Agrarian Change in Malawi', in G.C.Z. Mhone (ed.), *Malawi at the Crossroads: The Post-colonial Political Economy* (Harare, Sapes Books, 1992); Kishindo, 'Customary Land'.

25 Inheritance of land from father to children was also reported by Mkandawire in the Lilongwe Rural Development Project and by Englund in the Dedza District. See Mkandawire, 'Customary Land'; H. Englund, 'Waiting for the Portuguese: Nostalgia, Exploitation and the Meaning of Land in the Malawi-Mozambique Borderland', *Journal of Contemporary African Studies*, 14, 2 (1996), pp. 157–72; H. Englund, 'The Self in Self-Interest: Land, Labour and Temporalities in Malawi's Agrarian Change', *Africa*, 69, 1 (1999), pp. 139–59.

Table 2 . Size distributions of farms

Total Farm Size*	Kachamba n=31 (%)	Belo n=30 (%)	Horo n=32 (%)	Bongololo n=33 (%)	Mulawa n=28 (%)	Mbila n=32 (%)	Total n=186 (%)
None	0	0	0	0	0	0	0
< 0.5 ha.	26	7	50	27	29	22	27
0.5–1.0 ha.	39	17	38	48	14	41	33
1.0–1.5 ha.	19	27	6	15	29	25	20
1.5–2.0 ha.	10	27	6	6	18	6	12
More than 2.0 ha.	6	23	0	3	11	6	8
Total	100	100	100	100	100	100	100

* Including farms on rent-in land.

Kachamba after marriage and using their own land, some male villagers cultivated additional land belonging to wives who came from nearby villages. Four such cases were found, and their average landholding (husband's land plus wife's land) was 39 per cent larger than the average landholding of a husband only.²⁶ Because landholdings became smaller as the land was divided among descendants upon transfer, obtaining land from sources other than one's own village, such as from a wife's village, appeared to be an important means of increasing farm size. By altering local institutions, villagers coped with the increased land pressure and difficulties in land acquisition.

Horo. Most residents in Horo were matrilineal Lomwe. They were descendants of migrants who originally came from Mozambique in the first half of the twentieth century during a massive exodus of Lomwe people fleeing Portuguese rule in Mozambique. Some of the Lomwe migrants were absorbed as farm labourers into the large European settler estates in southern Nyasaland. Others settled on unoccupied land and formed new villages, and Horo was one such village. The present-day residents in Horo were the third or fourth generation of the original settlers. Due to population increase, there was no uncultivated land left for new allocation at the time of the survey. The sample households in Horo had mostly acquired land rights through gifting and inheritance (Table 1).

The Lomwe people follow matrilineal inheritance rules. However, land held by male landholders among the first-generation migrants (who obtained land rights by opening new farms on unoccupied land) tended to be inherited or gifted to their children if other matrilineal kin members did not reside in their village. When land was transferred to the next generation, it was divided into pieces to ensure all legitimate heirs received land. This practice often meant individual landholdings became smaller as the generations proceeded. In the case shown in Figure 3, for example, the land held by an original migrant had been divided into small pieces that were held by 13 descendants at the time of the survey. As a consequence of such subdivision, the average farm size of the sample households in Horo was only 0.58 hectares, the smallest in the six study villages. Half of the sample households in Horo cultivated less than 0.5 hectares.

Sources and methods of land acquisition in Horo show some similarities with those in Kachamba. First, although the majority of land acquisition cases were from matrilineal kin members, there were ten cases (23 per cent) in which plots of land were acquired through non-matrilineal lines. Second, land transfer from mother to daughter was not always the norm. Landholders included both women and men, and it is noteworthy that there were ten cases in

26 In the four cases, the average landholding size of the husband was 0.897 hectares, while that of the wife was 0.354 hectares.

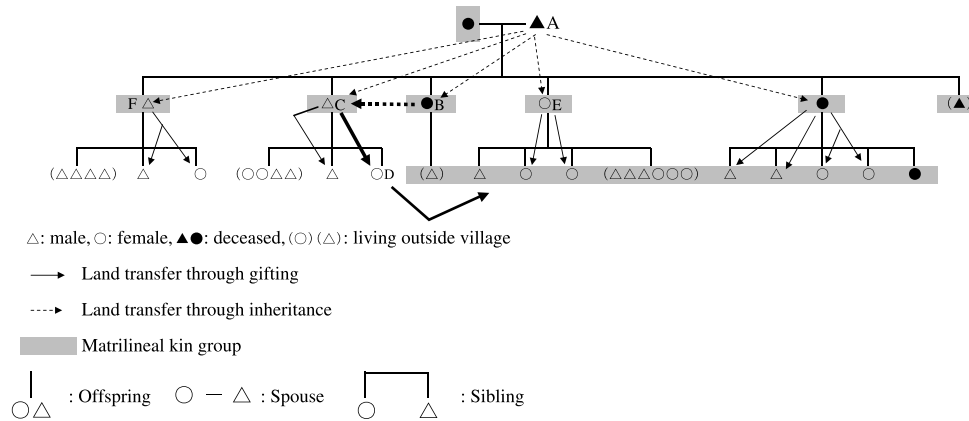


Figure 3. Directions of land transfers in Horo (Case 2). *Note:* The land transfers in Case 2 discussed in the main text are indicated in bold type.

which men obtained land from their mothers. As in Kachamba, matrilineal inheritance rules were not rigidly applied to actual land transactions in Horo.

The existence of flexible applications of inheritance rules does not necessarily mean that matrilineal inheritance is weakening. On the contrary, there were some cases in which flexible application was counterchecked by a rigid application of matrilineal inheritance rules, as the following two cases illustrate.

Case 1

When JT, a 34-year-old woman in Horo, was living with her mother, they were cultivating a piece of land that had been allocated by the father of JT's mother. When JT's mother died, however, the land was taken by matrilineal kin of the mother's father, and JT could not inherit the land and lost her cultivation rights on it. As a divorced woman with five young children, JT did not hold her own land at the time of the survey. She had borrowed a very small piece of land (0.14 hectares) from her stepmother to cultivate maize.

Case 2

In the case shown in Figure 3, when a female kin member, B, died, her land was inherited by her uterine brother, C, in accordance with matrilineal inheritance rules. In 2003, C gifted the land to his daughter, D. However, this land gift was challenged by other kin members because D did not belong to the matrilineal kin group. After some discussion among kin members, it was decided that from 2005 the land should be given to one of E's children, who is a matrilineal kin member of the original landholder.

In both cases, a land transfer from a man to his child or grandchild was counterchecked by his matrilineal kin. Under the situation of increasing land shortage in the area, individuals sought to obtain land rights from any source, including non-matrilineal kin members such as fathers or grandfathers. On the other hand, the same land shortage induced matrilineal kin groups to countercheck the practice of flexible land transfer (to prevent their lineage land from being alienated) to non-kin members. Thus, the coexistence of both flexible and rigid applications of inheritance rules in land scarce situations can be seen as a conflict between the individual struggling for land rights and the lineage seeking to protect land from alienation.

Land Rights in Patrilineal Societies

Villagers in Bongololo and Mulawa follow patrilineal inheritance rules in which land is transferred through patrilineal lines, mostly from father to son. Most of the land gifts and inheritance transfers observed in the sample households in the two villages were patrilineal (Table 1), but there were also some exceptions. The following section examines the cases in which land was not transferred patrilineally, revealing that inheritance rules were applied flexibly to accommodate various individual situations.

Bongololo. The average farm size of the sample households in Bongololo was 0.80 hectares, and 27 per cent of the sample households cultivated less than 0.5 hectares (Table 2). At the time of the survey, there was little uncultivated land left for new allocation and most households obtained their land rights through gifting or inheritance.²⁷ Land sales were not allowed in Bongololo, but land rental was permitted.

Residents of the village were mostly patrilineal Tumbuka.²⁸ Among the sample households, instances of land acquisition from patrilineal kin members accounted for 77 per cent (23 cases) of the total. Yet there were seven cases²⁹ in which plots of land were obtained from somebody other than the person's patrilineal kin group. Two such cases are examined below to clarify the reasons for non-patrilineal inheritance and gifting of land. In both cases, the existence of strong relationships between original landholders and heirs led to the non-patrilineal land transfer.

Case 3

GG, a 25-year-old man in Bongololo, received a piece of land from his mother's father, MG (a person who is not GG's patrilineal kin). As is shown in Figure 4, this was the only non-patrilineal land transfer in the family, and all other land transfers followed patrilineal inheritance rules. The following life history of GG explains why the non-patrilineal land transfer occurred.

GG's mother was born in Bongololo but moved to the district capital of Mzimba when her father, MG, found a job there. However, she died in Mzimba after giving birth to two babies, one being GG. Thereafter, MG took care of the two babies, and when he returned to Bongololo, MG also brought the two young children along to the village. GG and his younger brother grew up in MG's house in Bongololo, and when GG got married in 1999, he was gifted with a piece of land from MG.

The above life history of GG explains the reason for the non-patrilineal land transfer: although GG and MG did not belong to the same patrilineal kin, their relationship in everyday life made them very close to that of real kin. In fact, GG put up his house next to that of MG and MG's patrilineal kin members, and lived as if he were a member of the kin group. The non-patrilineal land transfer from MG to GG was made possible under this situation of a 'quasi-kin relationship' between the two people.

27 There were two cases in which the villagers obtained land rights through the village headman's allocation. In both cases, land had been allocated a long time ago, in 1987 and 1949.

28 Until the mid-nineteenth century, the Tumbuka followed matrilineal inheritance and uxorilocal residence. However, after being conquered by the patrilineal Ngoni around 1855, the Tumbuka gradually adopted Ngoni-patterned patrilineality, virilocal residence, and bridewealth payments. See L. Vail and L. White, 'Tribalism in the Political History of Malawi', in L. Vail (ed.), *The Creation of Tribalism in Southern Africa* (London, James Currey, 1989), pp. 151–92.

29 In six of the cases, land was obtained by women. These cases will be examined later.

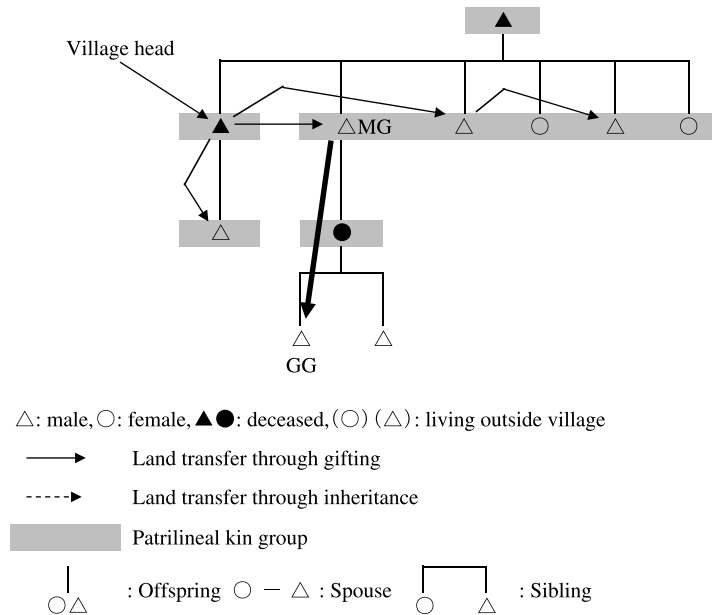


Figure 4. Non-patrilineal land transfer in Bongololo (Case 3). *Note:* The non-patrilineal land transfer discussed in the main text is indicated in bold type.

Case 4 (Figure 5)³⁰

A similar non-patrilineal land transfer based on a quasi-kin relationship was found in the case of CN, a 37-year-old man who obtained land from his father's uterine brother, SM. Most of the land that SM (who was 79 years old at the time of the survey) obtained from his late father was gifted to SM's sons, following the patrilineal inheritance rules. However, a portion of land was also given to CN, who was not a patrilineal kin member. The following family histories explain the non-patrilineal land transfer.

When SM was still young, his father died and his widowed mother soon remarried and gave birth to N, CN's father. SM and N were uterine brothers and they grew up together. Later they put up their houses next to each other, and SM was a part of CN's life from the latter's childhood. Although, strictly speaking, SM and CN belonged to different patrilineal kin groups, their relationship was clearly much more than that of mere neighbours. This strong personal relationship was the reason behind the non-patrilineal gifting of land.

Mulawa

Mulawa is a patrilineal Ngoni village. Most residents in Mulawa are the descendants of an Ngoni migrant who came from a village north of Mzimba and settled in what was then an uninhabited area in the first half of the twentieth century. At the time of the survey, population pressure on the land was not very keen in Mulawa as it was in the three villages discussed above. This was reflected in the fact that the average household farm size in Mulawa was 1.18 hectares, twice as much as that in Horo.

³⁰ Case 4 was not a sample household and therefore not counted in Table 1.

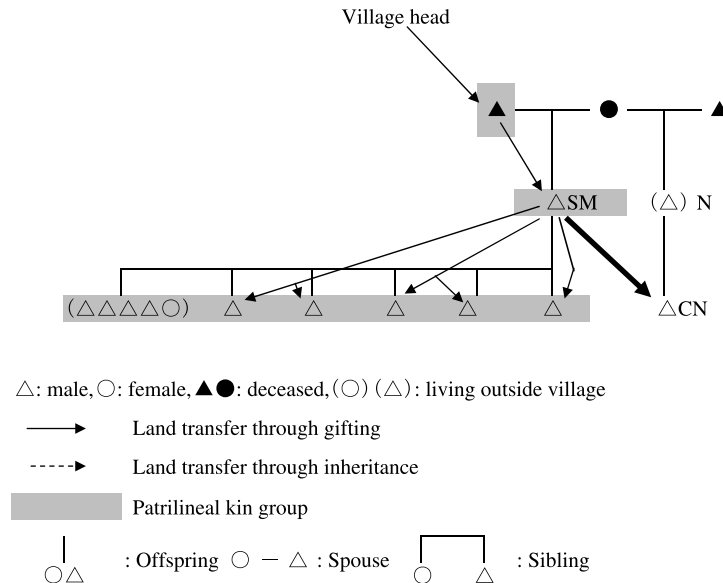


Figure 5. Non-patrilineal land transfer in Bongololo (Case 4). *Note:* The non-patrilineal land transfer discussed in the main text is indicated in bold type.

Methods and sources of land acquisition in Mulawa (Table 1) showed similar characteristics with those in Bongololo. First, most cases (82 per cent) of land gifting and inheritance followed patrilineal inheritance rules. Second, there were a few cases in which land rights were obtained through non-patrilineal lines. It is noteworthy that, again, strong personal ties between landholders and heirs explain the non-patrilineal land transfers, as the following two cases illustrate.

Case 5 (Figure 6)

BM's mother was born in Mulawa but moved to her husband's village in Zambia when she married. Later she gave birth to BM in Zambia, but soon divorced and returned to Mulawa with BM. BM's mother died when he was only five years old. Thereafter, BM grew up under the care of his mother's brother. When BM got married in 1992, he received a 0.64-hectare piece of land from the maternal uncle. His maternal uncle had two sons, who also received land from their father.

Case 6 (Figure 6)

CB's mother was also born in Mulawa, moved to her husband's village when married, but came back to Mulawa after the death of her husband. At the time of returning to Mulawa she was pregnant, and soon gave birth to CB. CB and his mother lived with his maternal grandparents in Mulawa. Later his grandfather died; then his own mother died, and thereafter CB lived with his grandmother who inherited her late husband's plot of land. When CB grew up, the grandmother gifted her late husband's land to CB.

The four cases in Bongololo and Mulawa described above indicate the two conditions under which a non-patrilineal land transfer can occur. One is where a person who, for reasons

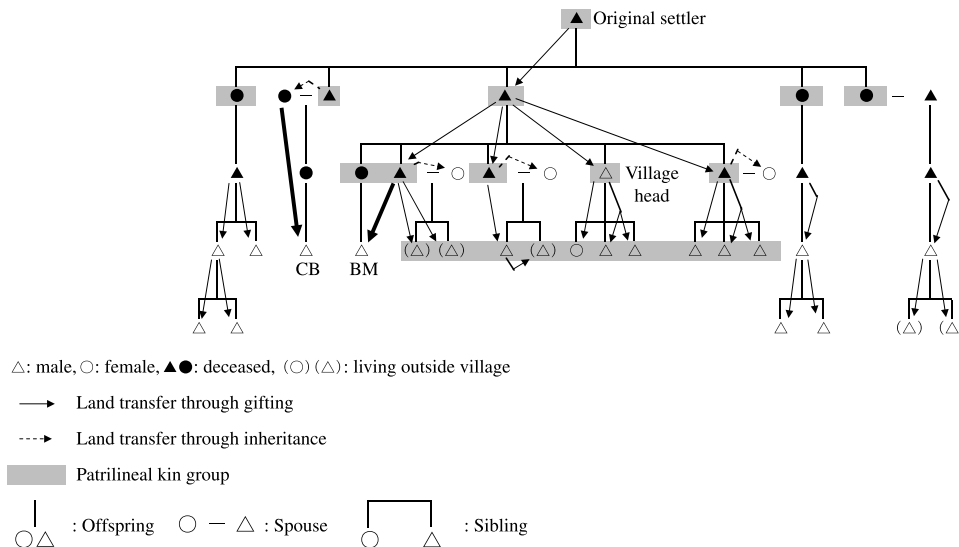


Figure 6. Directions of land transfers in Mulawa (Cases 5 and 6). *Note:* The non-patrilineal land transfers in Case 5 and 6 discussed in the main text are indicated in bold type.

unique to his or her individual life history, has no contact with patrilineal kin members who, under normal conditions, should be the sources of land acquisition. The other is where an original landholder and an heir develop a strong relationship, like that of a foster parent and child, which legitimises a land transfer that does not follow patrilineal inheritance rules. Although patrilineal inheritance was practised in the majority of cases in the two villages, the rules were flexibly applied under the two above conditions so as to accommodate individual circumstances.³¹

Land rights of female headed households. In matrilineal societies such as those in Kachamba and Horo, land is passed down through matrilineal and mostly to female heirs. Although sons also obtained land from their matrikin, the norm in matrilineal inheritance rules is that daughters have priority over land.³² Therefore, female-headed households in matrilineal societies have legitimate access to land under customary inheritance.

On the other hand, inheritance rules of patrilineal societies, in principle, exclude women from having access to land rights. The norm in patrilineal societies is that land is passed down from fathers to sons. In Bongololo and Mulawa, however, we found some cases in which women obtained land rights (Table 1). One means for women to gain access to land was through widowhood. If a marriage is a legitimate one involving a bridewealth payment, a widowed wife may remain in the late husband's village with her children and continue cultivating the husband's land. This type of land transfer from husband to wife may be called 'inheritance' in a sense, but in fact the wife has no right to transfer the land to her patrilineal kin. The land rights of a widowed wife in patrilineal societies are that of a custodian: she is expected to take care of the land until the legitimate heirs, her sons, grow up and take over the

31 This echoes the observation made by Moore and Vaughan in northern Zambia that rights regarding land are 'historically determined, often being bound up with the biography of particular individuals'. H.L. Moore and M. Vaughan, *Cutting Down Trees: Gender, Nutrition, and Agricultural Change in the Northern Province of Zambia, 1890–1990* (Portsmouth, NC, Heinemann, 1994), p. 210.

32 Peters, 'Land Tenure'.

land. Although the widowed wife's right to cultivate the late husband's land is guaranteed, landholding rights remain with the husband's patrikin, and the wife has no right of land disposal. This temporal land rights of a widowed wife is in accordance with patrilineal inheritance rules.

Other means for women to obtain land rights that were observed in the study villages did not follow patrilineal inheritance rules. As is shown in Table 1, some women in Bongololo and Mulawa obtained land from their father, mother, a maternal uncle, a paternal uncle, and a brother. All of these women were the head of a household, and many of them were returnees from a husband's village after a divorce or a husband's death. Although patrilineal inheritance rules, if applied rigidly, would not allow these women to hold land, they managed to obtain land from one source or another as the following case illustrates. This again indicates that customary inheritance rules can be flexible enough to accommodate individual situations.

Case 7

SG was a 45-year-old female and the head of a household in Bongololo. She divorced in 2000 and returned to Bongololo from her husband's village with her two children. As a divorced woman with no land in her natal village, she initially made a living by brewing and selling local beer. In 2003 her paternal uncle gifted to her a 0.11-hectare piece of land, on which SG planted maize and tobacco. In 2005 she borrowed another 0.17-hectare plot from her younger brother free of charge where she grew maize.

Land Rights in a Multi-ethnic Community: Mbila

Mbila is a multi-ethnic community where the majority of residents (72 per cent at the time of the survey) are indigenous (matrilineal) Chewa, while patrilineal Tumbuka and Ngoni also accounted for a sizable part of the population (20 per cent when the survey was taken). The village is located close to the border between the Central Region (where the population is predominantly matrilineal) and the Northern Region (which is patrilineal), and this partly explains the multi-ethnic component.

As was the case in Kachamba, uxori-local marriage was not strictly practised among the Chewa in Mbila. Both uxori-local and viri-local marriages were observed, as the case below illustrates.

Case 8 (Figure 7)

SD is a Chewa man who was born in Zambia and moved to Mbila in 1983 when he married a Chewa woman in the village (uxori-local marriage). In the next year, he and his wife were allocated a piece of land by the village headman. At the time of the survey, parts of this land were gifted to his three sons and one daughter who were all married. The wives of the three sons had all moved to Mbila upon marriage (viri-local marriages) while the husband of SD's daughter had moved to the wife's village (uxori-local marriage).

Similarly, matrilineal inheritance rules were not strictly followed among the Chewa in Mbila. As Table 3 shows, the number of cases in which land rights were obtained from matrilineal kin was less than that from other sources. Thus, matrilineal inheritance and uxori-local marriage were not the norm among the Chewa in this village. On the other hand, the sources of land acquisition in all four cases of land gifting and inheritance among Tumbuka and Ngoni households were fathers.

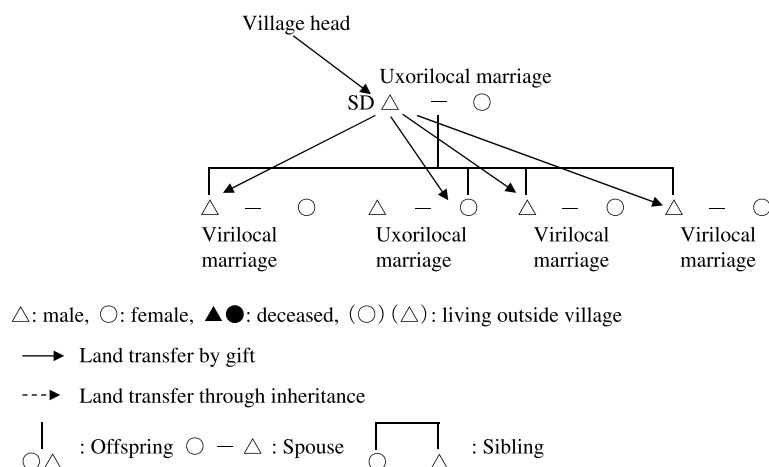


Figure 7. Coexistence of uxori-local and viri-local marriages (Case 8).

Table 3. Sources of land acquisition among Chewa in Mbila

Matrilineal/ Other	Source	Number of cases
Matrilineal	Mother	2
	Maternal grandmother	2
	Uterine sibling	1
	Maternal uncle	1
	Total matrilineal	6
Other	Father	10
	Husband	2
	Allocation by village head	3
	Purchase	2
	Total others	17

A Land-abundant Migrant Community: Belo

Belo belongs to TA Mponda and used to be a small indigenous Yao community until the 1980s. However, at the time of the survey in 2004, the majority of Belo residents were migrants who had settled in the village since the 1980s (Table 4). The main reason for the migration to Belo appeared to be the availability of land, as migrants made clear in interviews. It is noteworthy that many of the migrants (41 per cent) came from the land-scarce areas of the Southern Region such as the Zomba, Mulanje and Thyolo Districts. This provides a micro-level evidence of increasing rural–rural migration driven by land shortage, as discussed by Potts.³³

Upon arrival at Belo, migrants were given portions of land by the village headman. No payment was made when land was allocated to the migrants, although some expressed their appreciation to the headman by giving gifts such as chickens, maize, or cash. After receiving

³³ D. Potts, 'Rural Mobility as a Response to Land Shortages: The Case of Malawi', *Population, Space and Place*, 12 (2006), pp. 291–311.

Table 4. Year of migration into Belo (household heads)

Year	Number of households	Percentage
1985 or before	10	9%
1986–1990	27	23%
1991–1995	15	13%
1996–2000	22	19%
2001 or later	26	23%
Unknown	5	4%
Total migrant households	105	91%
Total indigenous households	10	9%
Total Belo households	115	100%

the land, migrants were free to transfer land rights to relatives. However, transfer of land to strangers was not permitted.

When migrants (and their relatives) leave Belo, their land must be surrendered to the village headman for reallocation to others, in accordance with customary land tenure. As migrants who recently came to the village from various parts of Malawi, many of Belo's residents did not have relatives in the village. Leaving the village after some years therefore meant abandoning rights to the land, and labour and capital investments in it. The following case shows one strategy that migrants in Belo adopted to retain control of their land even after they have left the village.

Case 9

OJ, a 28-year-old Yao man, settled in Belo in 1996 after being asked by his maternal uncle to come to Belo and take over the land which the uncle had obtained in 1990 from the village headman. When the uncle returned to his natal village for some undisclosed reason in 1996, he was farming land as well as holding as yet unopened land in Belo, but he had no relatives there to take over the land, which meant that it would be reallocated to somebody else after he left. To keep the land rights, the uncle decided to invite OJ, a legitimate heir, to come and continue cultivating the land. At the time of the survey, OJ was cultivating 1.2 hectares of land and was still expanding the farm.

In contrast to the general scarcity of land in the other study villages, land was still readily available in Belo at the time of the survey. The size distribution of farms in the study villages (Table 2) clearly shows the relative abundance of land in Belo. The remote location of the village delayed the inflow of population into the Belo area,³⁴ and most residents at the time of the survey were first-generation migrants. They were still in the process of expanding farms on the allocated land, and the subdivision of land through gifting and inheritance to the next generation (as was observed in other study villages) was yet to occur.

The abundance of uncultivated land in Belo often caused boundary disputes. Many Belo residents still had areas of their land that were yet to be opened for farming. As the boundaries of the allocated land were not always clearly defined, some farmers claimed others had 'invaded' their land. This was most likely to happen when an unused part of one farmer's land lay alongside land being cultivated by another farmer. To avoid such invasions, some farmers

34 A 1/50,000 scale map, produced by the Department of Surveys based on aerial photography done in 1970, showed nothing but 'orchard bush' and no settlement in the area today covered by Belo.

began cultivating plots along the boundaries of their land. Their strategy was to avoid impingement of their land rights by clearly demonstrating the results of their labour inputs on the land. The following case illustrates such a strategy.

Case 10

LL was once a farm labourer on an estate near Lilongwe. In 1988 he migrated to Belo in the hopes of getting some land there, and soon was allocated land by the village headman. Because LL was one of the early migrants who settled in Belo, unoccupied land was abundant. He therefore received a large tract of land from the village head, which enabled LL to distribute land to his seven children and six relatives. Even after this distribution, many parts of his allocated land were still unused at the time of the survey.

In 2003 a migrant put up a house, without LL's consent, on an unused area of LL's land, and began farming there. The migrant claimed that he had been allocated the land by a village headman under the adjunct TA Nankumba. This happened because the border of the land between the two Traditional Authorities was not clearly demarcated, and the two village headmen under different TAs allocated the same land to two households. LL did not openly challenge the claim of the newcomer, but ordered his children to start new farms along the border area of his land to prevent further impingement.

The strategy of cultivating new plots to prevent others encroaching on land was only possible in the land-abundant circumstances in Belo. In other study villages where uncultivated land was seldom available, such problems rarely occurred because every villager clearly recognised the boundaries of every plot of land. Similarly, the strategy of inviting a legitimate heir to the village to prevent land alienation, seen in Case 9, is peculiar to Belo. The strategy was adopted in a situation where the majority of households were first-generation migrants who had to find a legitimate heir who could assume the land rights. In other study villages, and probably in most rural areas in Malawi, it is easy to find legitimate heirs in the same village. The problem in rural Malawi is usually not a result of the absence of legitimate heirs as in the case of Belo, but rather that there are too many legitimate heirs for a small piece of land as in Horo. However, it seems highly likely that within a few decades Belo residents will also experience a similar population increase and subdivision of land that will lead to an intensification in the struggle for land among villagers there.

Vernacular Land Markets

Contrary to the customary prohibition of outright sales of land, some cases of land acquisition by purchase were found in Kachamba (three cases), Horo (one case), and Mbila (two cases). In one case in Mbila, a migrant who worked on a large commercial farm for 12 years purchased a 2.4-hectare piece of land from the village headman in 1999 and settled in the village. In another case in Mbila, a soldier from another area purchased a piece of land of about seven hectares from a relative of the village head in 1998, and a written agreement on the land sale was prepared in the presence of the village head. In Kachamba and Horo, however, most land buyers were resident farmers who wished to expand their farms. Purchases in five out of the six cases were made in the previous ten years³⁵ and the transactions were authorised by the village heads. This suggests that land sales have been taking place relatively recently, with the 'official' approval of village

35 The only exception was the original settler of Kachamba, who purchased land from the local chief in 1953.

heads, despite the customary prohibition in theory. One such case in Kachamba is illustrated below.

Case 11

YK was a 35-year-old man in Kachamba who had a brother and a sister in the same village. All of three were married and had formed independent households. YK's widowed mother had a two-hectare piece of land, from which she gave a 1.5-hectare piece to YK's brother. She kept the remaining 0.5 hectares for herself. YK therefore had to seek land elsewhere. He first borrowed a 0.5-hectare piece of land free of charge from his maternal grandfather in 1996. In 1998, he purchased a 1.2-hectare piece of land from somebody in a nearby village for 72 GBP. Upon purchase, he and the seller prepared a written document certifying the sale. They also reported the sale to the village headman and gave him a goat to show their appreciation.

The cases of land purchase generally support Chimhowu and Woodhouse's argument that the vernacular land market has been gaining momentum in recent years. They also affirm that people try to reinforce the legitimacy of land rights acquired in vernacular markets through various means, such as written documentation and approval from authorities. In addition, the types of land buyers correspond to those identified by Chimhowu and Woodhouse: migrants who lack customary land rights, bureaucrats and politicians who have enough income earned from full-time jobs to invest in land, and indigenous residents who have access to customary land rights but are forced to resort to land purchases because of the increasing problem of land scarcity.³⁶

The lands purchased in the villages studied were relatively large, and the land buyers appeared to be wealthy. The land purchased during the previous ten years ranged from 0.41 to seven hectares, and the average size was 2.4 hectares.³⁷ Given that the average farm size per household in the sample was 1.0 hectare, the size of land obtained through purchase was much larger than plots obtained through customary transactions involving gifts and inheritance. All land buyers were men and either had a regular salaried job or came from relatively wealthier households, or both. When household income per adult equivalent is calculated, four of the land buyers belonged to the top income quartile.³⁸ This suggests that it is the upper stratum of the population that is most likely to be able to obtain a large tract of land or expand their landholdings through purchase. This partly supports the argument made by Peters,³⁹ Chimhowu and Woodhouse⁴⁰ that the contemporary dynamics of customary land rights and emerging vernacular land markets result in increased inequalities.

Yet land rental markets were used by a more diverse range of farmers than these authors suggest. The size of land rented was much smaller than that of purchased land, ranging from 0.1 to 0.5 hectares, the average being 0.3 hectares. The size of the farms operated by the land-renting households ranged widely, from 0.3 to 3.7 hectares, the average being 1.2 hectares. Household income per adult equivalent of the land-renting households varied across all income quartiles. Both land-hungry and land-rich households resorted to land rental markets. For the poor household, the aim of renting land was to secure its survival. A 69-year-old man in Horo, for example, had only a small (0.03-hectare) piece of land of his own and rented an

36 Chimhowu and Woodhouse, 'Customary vs Private Property Rights', pp. 357–58.

37 The case of the original settler in Kachamba who purchased land in 1953 is excluded here.

38 Income quartiles were obtained by ranking all sample households in each village studied according to income per adult equivalent unit and dividing them into four equal groups. For the income disparities among the sample households, see Takane, 'Gambling with Liberalization'.

39 Peters, 'Land Tenure'.

40 Chimhowu and Woodhouse, 'Customary vs Private Property Rights'.

additional 0.2 hectares, on which he grew maize for home consumption. His household was ranked in the bottom income quartile. For the wealthier households, by comparison, the aim was to maximise farm income by increasing farm size. A wealthy farmer in Kachamba, for example, rented 0.2- and 0.4-hectare pieces of land in the nearby village at the cost of about five GBP per year. In his village, he already had a 3.1-hectare piece of land, parts of which had been purchased in 1997. His farm was the largest in the village, and the household income per adult equivalent was the second-highest. Thus, land rental plays two roles in the vernacular land markets in situations in which land is scarce. On the one hand, it enables farmers lacking land to acquire their means of survival by obtaining additional land. On the other hand, it provides opportunities for wealthy farmers to further expand their farm acreage. Thus, the effects of the development of land rental markets are not unidirectional, as they are in the case of land purchase.

Although the emerging vernacular land markets have these important implications, the extent to which they have developed remains relatively limited in the villages studied. Only six cases of land purchase were found in three of the six villages while the number of cases of land acquisition based on non-market customary rules (gifts, inheritance, and allocation by village head) was 200 (Table 1). Land rental was more active (18 cases) than land purchase, and was found in four of the villages studied, but there were fewer transactions than cases of land borrowed free of charge from relatives and friends (24 cases). Overall, the cases of market-based land transactions (purchase and rent) accounted for ten per cent of the total land transactions, and those of land purchase only two per cent. Thus, the vernacular land markets have developed in the villages studied only to a limited extent.

Conclusion

This article examined the interrelationship between actual land transactions and customary land tenure and inheritance rules. It revealed that although the majority of land transactions followed customary land tenure systems and inheritance rules, in a good number of cases land transactions deviated from the basic rules. One factor behind this deviation was the unique personal relationships between original landholders and heirs. Another factor was the apparent increase in the number of cases of wives returning to patrilineal villages. Still another factor was the intensifying scarcity of land, which encouraged villagers to adopt strategies to obtain land rights from any source and by any means. But there were also some cases in which the same problem of land scarcity induced villagers to countercheck the practice of flexible land transfers to prevent their lineage land from being alienated to non-kin. These findings suggest that, in a situation in which land is scarce, an individual strategy to obtain land rights from any possible source by deviating from customary rules may occasionally be in conflict with lineage strategies to countercheck that tendency to protect lineage land.

This article has also illustrated the recent development of vernacular land markets in rural Malawi. Yet these markets are still limited and relatively weak, as kinship remains the main force behind land transactions. The limited number of cases of vernacular land market transfers shows some important characteristics. It is the wealthier segment of the rural population that has been able to use land-sales markets to obtain relatively large tracts of land. In the land-rental markets, transactions involve plots of smaller size, but more numerous exchanges, and are utilised by both poor and wealthy households for different purposes.

Revisiting the debate over whether the contemporary dynamics of land rights in rural Africa are best characterised as adaptive and negotiable, or as producing growing inequality

and social differentiation, this article has revealed a mixed, complex, and non-unidirectional picture. On the one hand, we observed many cases of adaptive and flexible applications of customary land tenure and inheritance rules that enabled the less-powerful segment of the rural population to obtain land rights. On the other hand, the same flexible and adaptive application of customary rules generated conflicts between individuals and lineages. The emerging vernacular land markets also provided different opportunities to the poor and the rich. This seemingly bewildering result better captures the complex reality of rural Malawi than oversimplified and unidirectional interpretations of the contemporary dynamics of the agrarian economy.

TSUTOMU TAKANE

Department of International Agricultural Development, Tokyo University of Agriculture, 1-1-1 Sakuragaoka, Setagayaku, Tokyo 156-8502, Japan. E-mail: yb4ah3@bma.biglobe.ne.jp

Copyright of Journal of Southern African Studies is the property of Routledge and its content may not be copied or emailed to multiple sites or posted to a listserv without the copyright holder's express written permission. However, users may print, download, or email articles for individual use.